

Non-Circumvention and Non-Disclosure Agreement

NCNDA | RSK-NCNDA-02

This Agreement is made and entered into on the date stated below between the following parties (each a "Party", together the "Parties"):

DATE OF AGREEMENT _____ PLACE _____

PARTY A

COMPANY NAME _____

REGISTRATION NO. _____ COUNTRY _____

REGISTERED ADDRESS _____

REPRESENTED BY _____ POSITION _____

PARTY B

COMPANY NAME _____

REGISTRATION NO. _____ COUNTRY _____

REGISTERED ADDRESS _____

REPRESENTED BY _____ POSITION _____

01 Purpose and Definitions

- 1.1** The Parties wish to explore and, where agreed, conduct international commodity and trade transactions (the "Transaction") and, for this purpose, will disclose to each other confidential information and introduce each other to buyers, sellers, banks, logistics providers, producers, intermediaries and other business contacts.
- 1.2** **"Confidential Information"** means all information, in any form, disclosed by or on behalf of a Party, including commercial terms, prices, volumes, product specifications, supplier and buyer identities, banking details, documents, business plans and any information marked or reasonably understood to be confidential.
- 1.3** **"Contacts"** means all natural and legal persons, and their affiliates, directors, agents and representatives, introduced or made known to a Party by the other Party in connection with a Transaction.

02 Confidentiality

- 2.1** Each Party shall keep all Confidential Information strictly confidential, use it solely for the Transaction, and not disclose it to any third party without the prior written consent of the disclosing Party.
- 2.2** Disclosure is permitted only to directors, employees, legal, tax and financial advisers who need to know and are bound by equivalent confidentiality duties. The receiving Party is liable for any breach by such persons.
- 2.3** These obligations do not apply to information that is or becomes public without breach of this Agreement, was lawfully known to the receiving Party beforehand, or is independently developed. Disclosure required by law or court order is permitted, provided the disclosing Party is notified in advance where lawful.

03 Non-Circumvention

- 3.1** Neither Party shall, directly or indirectly, circumvent, bypass or avoid the other Party in relation to any Contact or Transaction introduced under this Agreement, including by contracting, negotiating or dealing with such Contacts without the other Party's participation.
- 3.2** Neither Party shall use Confidential Information or Contacts to obtain commissions, fees, profits or other advantages to the exclusion of the introducing Party, or induce any Contact to do so.

- 3.3** Each Party remains entitled to any agreed commission, fee or margin arising from Transactions with Contacts it introduced, including repeat, follow-on and extended business, in accordance with a separate written agreement between the Parties.

04 Term

- 4.1** This Agreement takes effect on the date above and remains in force for **five (5) years**. The confidentiality and non-circumvention obligations survive expiry or termination for a further period of five (5) years.

05 Remedies

- 5.1** Each Party acknowledges that a breach may cause irreparable harm for which damages alone are inadequate. The non-breaching Party may seek injunctive relief and specific performance in addition to any other remedy.
- 5.2** Without prejudice to further claims, a Party in breach of Section 3 shall pay the other Party liquidated damages equal to the commission, fee or margin lost, or, if not determinable, the amount of USD _____.

06 Return of Materials

- 6.1** Upon written request, each Party shall promptly return or destroy all Confidential Information and confirm this in writing, save for copies required to be retained by law.

07 No Obligation, No Licence

- 7.1** This Agreement does not oblige either Party to enter into any Transaction, does not create a partnership, joint venture or agency, and grants no licence or right in any Confidential Information.

08 Governing Law and Dispute Resolution

- 8.1** This Agreement is governed by the laws of the jurisdiction stated below, without regard to conflict-of-law rules.

GOVERNING LAW _____

ARBITRATION RULES /
COMPETENT COURTS _____

SEAT / PLACE OF
JURISDICTION _____

LANGUAGE OF
PROCEEDINGS _____

- 8.2** The Parties shall first seek to resolve any dispute amicably within thirty (30) days of written notice before commencing formal proceedings.

09 General Provisions

- 9.1** This Agreement is the entire agreement of the Parties on its subject matter. Amendments must be in writing and signed by both Parties.
- 9.2** If any provision is invalid or unenforceable, the remainder stays in force and the Parties shall replace it with a valid provision closest to its economic intent.
- 9.3** Neither Party may assign this Agreement without prior written consent. It binds and benefits successors and permitted assigns.
- 9.4** This Agreement may be executed in counterparts and by electronic signature or scanned copy, each of which is deemed an original.

10 Signatures

Executed by the duly authorised representatives of the Parties:

PARTY A: NAME		PARTY B: NAME	
TITLE		TITLE	
DATE		DATE	

PARTY A: SIGNATURE AND STAMP

PARTY B: SIGNATURE AND STAMP

RSK TRUST & TRADE
INTERNATIONAL COMMODITIES